IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT – II)
IN
Company Petition No. – C.P.(CAA)-56(ND)/2022
IN
Company Application No. – C.P.(CAA)-29(ND)2022

IN THE MATTER OF SCHEME OF AMALGAMATION OF:

PREM INDUSTRIES INDIA LIMITED **...Applicant/ Transferee Company**

AND

PREM PIGMENTS LIMITED **...Non-Applicant/Transferor Company**

WITH

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order delivered on 19.03.2024

Under Section: 230 to 232 of the Companies Act, 2013

CORAM:

SH. ASHOK KUMAR BHARDWAJ, HON'BLE MEMBER (J)

SH. SUBRATA KUMAR DASH, HON'BLE MEMBER (T)

PRESENT:

For the Applicant **:** Mr. Rishabh Jain, Advocate

1. This is a joint Second Motion Application filed by **Prem Industries India Limited** (hereinafter referred to as Applicant Company) under Section 230-232 of the Companies Act, 2013 (the Act) read with Rule 3 & 5 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (hereinafter the Rules) and Rule 11 of the National Company Law Tribunal Rules, 2016 in relation to the Scheme of Amalgamation between the Applicant Company and the Non Applicant Company. The said Scheme is attached as Annexure 1 of the First Motion Application.
2. The Applicant Companies have prayed for sanctioning of the Scheme of Amalgamation (for short, the 'Scheme') between the respective companies.
3. On a perusal of records, it is seen that in the first motion petition filed by the Applicant Company, an Order dated 20.04.2022 was passed by this Tribunal dispensing with the meetings as prayed for. It was stated that there are only 02 unsecured creditors, whereas, subsequently in its clarification to the RD's Report, the Applicant Company has stated that there are 07 unsecured creditors. It is further claimed that 100% of the consents have been taken and therefore, it is in compliance with requirements of the act. There appears to be inconsistency in the

submissions made by the Applicant as far as the number of unsecured creditors is concerned and this matter needs further clarification.

4. The Applicant is directed to file an Affidavit with a clarification regarding the number of unsecured creditors and the percentage of consent given by these unsecured creditors of the Applicant Company within two weeks.
5. List the case for hearing on 15.04.2024.

Sd/-
(SUBRATA KUMAR DASH)
MEMBER (T)

Sd/-
(ASHOK KUMAR BHARDWAJ)
MEMBER (J)